

25LBCV03098 25LBCV03098

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-06-23

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Case Number: 25LBCV03098 Hearing Date: June 23, 2026 Dept: S27

Plaintiffs, Alexis Nicole Gilmore and Aireon Rajahne Scott filed this

action against Defendant, Spaulding Pacific, LLC for negligence and premises

liability. Plaintiffs allege they were

injured when a ceiling fan on Defendant's premises disconnected from the

ceiling and landed on them.

Aireon is a minor and is appearing through his mother and GAL, Vanity

Lebeau. Aireon suffered severe

contusions and a concussion as a result of the incident.

The parties have agreed to a global settlement of the lawsuit. If the settlement is approved, Defendant will

pay Alexis \$92,000 and will pay Aireon \$50,000.

Of that \$50,000, \$1223.68 will be used for medical expenses and \$12,500

will be used for attorneys' fees; the net balance of \$36,276.32 will be placed

in a blocked account.

The Court has reviewed the petition and finds the hearing must be

continued due to various defects in the petition. Specifically:

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The

attachments to the petition are not electronically tabbed, rendering review of

the attachments difficult.

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The

Court cannot locate Attachment 11b(6), which is required when there are

multiple plaintiffs whose claims have been settled.

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At ¶17,

the petition indicates Counsel will not receive any fees other than those from

Claimant in connection with the action.

If Counsel will receive a fee from Alexis's settlement, then this is

incorrect and must be amended. If

Counsel is not taking a fee from Alexis's settlement, Counsel must clarify this

in the amended petition.

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Petitioner

did not lodge a proposed order granting the petition and/or a proposed order

placing funds in a blocked account.

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Petitioner

did not file proof of service of the petition on Defendant.

The hearing on the petition is

continued for two months, to Thursday, 8/20/26 at 8:30 a.m. in Department

S27. The OSC re: dismissal (settlement)

is also continued to 8/20/26. An amended

petition must be filed and served in compliance with CCP §1005(b).

Petitioner is ordered to give

notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. If a party submits on

the tentative, the party's email must include the case number and must identify

the party submitting on the tentative. If any party does not submit on the

tentative, the party should make arrangements to appear remotely at the hearing

on this matter.